

26STCV08065 26STCV08065

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Case Number: 26STCV08065 Hearing Date: July 30, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 30,

2026 TRIAL DATE: Not Set

CASE: Donald Iwuchukwu. v. Shona L. Armstrong

CASE NO.: 26STCV08065

SPECIAL MOTION TO STRIKE UNDER CODE OF
CIVIL PROCEDURE SECTION 425.16 (ANTI-SLAPP MOTION)

MOVING PARTIES: Defendants

Shona L. Armstrong, and Armstrong Law

RESPONDING PARTY: Plaintiff Donald Iwuchukwu

CASE HISTORY:

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03/13/26:

Complaint filed.

TENTATIVE RULING:

Defendants' Anti-SLAPP Motion is GRANTED.

Moving Party to
give notice.

BACKGROUND

This is an action for defamation.

Plaintiff Donald Iwuchukwu, an attorney, alleges that Defendant Shona Armstrong, an attorney, is involved in a contentious trust dispute pending before a California court. Plaintiff alleges he serves as trustee of one of the competing trusts involved in that dispute.

Plaintiff further alleges that Defendant obtained the names and addresses of Plaintiff's current and former clients and began contacting them and making false accusations about Plaintiff, including that Plaintiff: scammed a former client for several hundred thousand dollars; transferred the client's home into his own name through a deed; intended to wait until the client died to steal property from the client's estate; is a prolific white-collar criminal, or prolific conman; and has been running large-scale scams for years stealing millions of dollars by siphoning off surplus funds.

Plaintiff alleges causes of action for: (1) defamation (libel and slander); (2) defamation per se; (3) false light; (4) intentional interference with contractual relations; (5) intentional interference with prospective economic advantage; (6) trade libel/commercial disparagement; (7) unfair competition; (8) intentional infliction of emotional distress; and (9) injunctive relief.

Defendants
move to strike Plaintiff's complaint pursuant to Code of Civil Procedure section 425.16.

DISCUSSION:

Request
for Judicial Notice

Defendants seek judicial notice of

pleadings and other documents in Court filings in other matters, along with deeds and other legal documents.

The requests are granted. It is well-established that courts may take judicial notice of the existence of recorded deeds (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549,) but not as to hearsay statements or disputable facts asserted therein. (*Poseidon v. Woodland* (2007) 152 Cal.App.4th 1106, 1117.) Accordingly, the Court will judicially notice the existence of the grant deeds and the Court filings, but not the truth of the material asserted therein.

Evidentiary
Objections

Plaintiff's Objections Nos. 1-3 are OVERRULED.

Plaintiff's Objections Nos. 4-53 are not in proper format as they fail to quote the objectionable text. (See California Rules of Court (CRC), rule 3.1354(b)(3).) Thus, the Court declines to rule on them.

Anti-SLAPP
Motion

Defendants move to strike Plaintiff's complaint on the ground that the allegations in all causes of action arise from litigation-based communications that are protected activity under Code of Civil Procedure section 425.16(e)(2).

First
Step: Defendants' Burden of Establishing Claims Arise from Protected Activity

[T]he only thing the defendant needs to establish to invoke the protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech."¿ (*Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 307.)¿

An "act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue" includes the following:

1. any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law,¿
2. any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law,¿
3. any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or¿¿
4. any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.¿¿¿

(Code Civ. Proc., § 425.16, subd. (e).)¿

Protected Activity

Defendants argue that the causes of action all arise from statements made in connection with underlying Probate matters involving estate planning work for Decedent Patricia Byrd Canson (Decedent), which they argue is protected activity under Code of Civil Procedure section 425.16(e)(2).

A defendant has the “burden of identifying all allegations of protected activity” on the 1st step of SLAPP.”¿ (Bel Air Internet, LLC v. Morales (2018) 20 Cal.App.5th 924, 936-937.)¿ Defendant only meets this burden by demonstrating that the act underlying the plaintiff’s cause of action “fits one of the categories spelled out in section 425.16, subdivision (e).”¿ (Sprengel v. Zbylut (2015) 241 Cal.App.4th 140, 150.)

Protected activity includes “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(2).) This provision is “construed broadly, to protect the right of litigants” and applies to a communication “if it has ‘ “some relation”

' to judicial proceedings." (Healy v. Tuscany Hills Landscape & Recreation Corp. (2006) 137 Cal.App.4th 1, 5.) "[A] statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation." (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1266.)

"Nothing in the statutory scheme prevents the defendant from introducing evidence" to show the plaintiff's claims arise from protected activity. (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 889.)

Here, by way of background, Defendants present evidence that from October 2024 to the present, Defendants have represented Steven A. Smith (Smith) in seven underlying actions that arose following the death of Patricia Byrd Canson (Decedent), Smith's sister. (Armstrong Decl., ¶ 2.) Plaintiff Iwuchukwu initially served as Decedent's attorney in connection with a foreclosure sale of her home in Richmond, California in late 2016. (Id., ¶ 9.) Plaintiff purportedly created the California Revocable Living Trust of Patricia Byrd Canson, dated February 28, 2017 (the 2017 Trust), the validity of which is a primary issue in the Underlying Actions. (Id., Ex. 2.) The estate beneficiaries are Aurin, who is the adopted son of Decedent's husband's cousin, (80%), Decedent's friend Sheila Webb (10%), and an individual named "Sue Bochac" (10%). Smith's private investigator concluded Sue Bochac denies knowing Decedent or having any relationship with her at all. (Id., ¶¶ 6, 10, Ex. 3.)

Decedent's home was sold at a foreclosure sale on November 29, 2016. (Id., ¶ 13, Ex. 4.) The attorney who managed the foreclosure James Lewin verified in a declaration that Decedent was owed \$474,184.38 in surplus funds. (Id., ¶ 13.) Lewin issued the surplus funds check to Decedent on March 3, 2017 and mailed it to Plaintiff after Plaintiff forwarded a purported "Irrevocable Living Trust of Clarence Canson dated May 16, 2005" (the Clarence Trust) and other documents. (Ex. 4 [Lewin Decl., ¶¶ 13-15].) Defendants hired a handwriting expert who concluded the Clarence Trust was forged as it was not actually signed by Clarence, Decedent's husband. (Armstrong Decl., ¶ 15, Ex. 5 [Fisher Decl.].)

On April 5, 2017, Plaintiff mailed a cashier's check to Decedent for \$204,347.50 claiming that amount represented her share of the foreclosure surplus, and the remaining \$269,836.88 was withheld "minus the hold-back (per instruction) and fees of 10% (Ten Percent) for attorney's fees..." (Armstrong Decl., ¶ 6.) Plaintiff has never explained or accounted for the "hold-back." Decedent did not cash the check but left it in her home, and she never suspected the amount was incorrect. (Id., ¶ 18, Ex. 7 [Smith Decl., ¶¶ 26, 37-38].) Decedent bought a new home in Pinole, California after the foreclosure, which she lived in mostly alone until she passed away. (Armstrong Decl., ¶ 19.)

On July 8, 2023, Decedent called Smith to advise she had terminal cancer and wanted help "getting her affairs settled" including estate planning as she was admitted to the hospital. (Id., ¶ 20.) Smith and other relatives (Aurin not included) spent the next several weeks caring for Decedent, who never mentioned the 2017 Trust to anyone. (Id., ¶¶ 21-22.) Decedent executed the Patricia Byrd Canson Living Trust, dated August 13, 2023 (the "2023 Trust") and a Pour Over Will in front of a notary and two neighbors as witnesses. (Id., Exs. 9-10.) Smith was named Successor Trustee for when Decedent passed away, and 19 relatives are named beneficiaries. (Id.) She also signed a Quitclaim Deed on August 13, 2024 placing her Pinole Home into the 2023 Trust. (Id., Ex. 11.)

After Decedent passed away, Smith thereafter discovered Plaintiff cancelled the cashier's check and told Smith to "back off" when he called his office. (Id., ¶¶ 28-30.) Smith also discovered the \$269,836.88 discrepancy in the surplus check sent by Plaintiff. (Id., ¶ 31.) Smith also hired a real estate agent to sell the Pinole Home, who regularly visited the home for six weeks and observed it was unoccupied. (Id., ¶¶ 32-33; Ex. 12.) On October 3, 2023, Aurin Canson moved into the Pinole Home claiming Plaintiff counseled him to break in because he had superior title. (Id., ¶¶ 34-35.)

After all the foregoing transpired, a flood of litigation ensued vis-à-vis the Underlying Actions starting on October 10, 2023. The five probate actions and detainer action boil down to determining whether the purported 2017 Trust or the 2023 Trust are controlling, and relatedly which Trust contains Decedent's property and assets. (Exs. 14-19 [Petitions].) The Civil Action alleges that Plaintiff and his associates conspired to: (1) convert funds from Decedent's estate and the 2023 Trust, (2) challenge Mr. Smith as Trustee, and (3) hide the conversion and wrest control of Decedent's

estate away from Decedent's heirs and beneficiaries. (Ex. 25 [Complaint].)

Defendants also interviewed and deposed Mary Beth Barbieri Mosley who purportedly notarized the 2017 Trust, and Ms. Barbieri/Mosley in sum said she has no knowledge of notarizing anything for Decedent and her notary journal has no record of such documents. (Armstrong Decl., ¶¶ 57-58; Exs. 28-29.)

Defendants also discovered through public records in other lawsuits that Plaintiff and his associates had a pattern of engaging in alleged conduct highly similar to what Smith accused them of doing to Decedent, i.e., conspiring to appropriate money or assets of clients through foreclosures, estate planning work, or other means. (Id., ¶ 61.) Defendants believed evidence from these lawsuits would be immensely helpful in the Underlying Actions (and admissible under Evid. Code, §§ 1101 and 1105) to support Plaintiff's habit, custom, motive, intent, and lack of credibility. (Id., ¶¶ 62-65.) Plaintiff tried to contact witnesses from some of these cases, which serve as the basis for Plaintiff's defamation claims. (Id., ¶¶ 67-79 [Robert Jacobson], ¶¶ 80-81 [the Mezas], ¶¶ 82-85 [Lorianne Owens].)

Thus, Defendants contend that their alleged actions here are communicative litigation activities. Defendants made the alleged communications in an effort to procure evidence to support Smith's claims, as well as reporting to law enforcement. (Armstrong Decl., ¶¶ 70, 81-83; Exs. 31, 39, 40.) Defendants have represented Smith in seven different Underlying Actions since October 2024. (Id., ¶¶ 3, 45, Ex 22.) While litigating these cases, Defendants allege they discovered a pattern of conduct by Plaintiff and his associates that included falsifying Trust documents, forging signatures, and pocketing Decedent's money.

It is well-established that petitioning activities are protected under the anti-SLAPP statute, including "communicative conduct such as the filing, funding, and prosecution of a civil action." (Rusheen v. Cohen, (2006) 37 Cal.4th 1048, 1056 (Rusheen).) In addition to the filing of lawsuits, "statements and pleadings made in or in preparation for civil litigation" are also protected. (ValueRock TN Properties v. PK II Larwin Square SC LP, (2019) 36 Cal.App.5th 1037, 1046; accord Miller v. Filter, (2007) 150 Cal.App.4th 652, 665.) "This includes qualifying acts committed by attorneys in representing clients in litigation." (Rusheen, supra, 37 Cal.4th at p. 1056; see Cabral v. Martins, (2009) 177

Cal.App.4th 471, 479–480 (Cabral) [“Under the plain language of section 425.16, subdivisions (e)(1) and (e)(2) ... all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute.”].) However, “[i]t is well settled that not all litigation-related conduct is protected activity.” (Drell v. Cohen (2014) 232 Cal.App.4th 24, 30 (Drell).)

As for the communications alleged by Plaintiff, the first was a letter delivered to Robert Jacobson. Jacobson owned a home in Laguna Niguel, which according to a Trust Transfer Deed recorded on January 20, 2026 revealed that Plaintiff arranged to transfer the home to himself as trustee of Mr. Jacobson’s living trust. (Armstrong Decl., ¶ 67; Ex. 30.) Given the similarities to Plaintiff’s work for Decedent, Defendants delivered the letter to Jacobson on February 28, 2026 which explained the alleged similarities between the two cases, described the information being requested from Jacobson, and attached a subpoena to take Jacobson’s deposition. (Id., ¶ 70; Ex. 31.) The letter makes it clear that Defendants “are simply seeking facts relevant to our actions against Donald Iwuchukwu and his co-conspirators, and, because there are real estate records showing you may have fallen victim to a similar scam, you appear to have relevant knowledge.” (Id.) In this letter, Defendants wrote that their client’s “sister, Patricia Byrd Canson, was scammed out of several hundred thousand dollars by a lawyer named Donald Iwuchukw.” (Id.)

The second communication at issue in Plaintiff’s complaint was made to former clients of Plaintiff named Helen and Thomas Meza. (Armstrong Decl., ¶ 81; Ex. 39.) Defendants discovered through public records that Plaintiff previously represented the Mezas in a wrongful foreclosure action filed on October 1, 2019. (Id., ¶ 80.) Defendants also discovered through public foreclosure notices there were irregularities with the foreclosure sale that occurred on December 17, 2018, and that it appeared there were \$277,402.40 in surplus funds owed to the Mezas that were unaccounted for. (Id.) Plaintiff withdrew from the Meza Action on April 15, 2021 leaving the Mezas in pro per, and the case was quickly thrown out on demurrers as of December 29, 2021. (Id.; Exs. 37-38.)

Based

on these similarities with Decedent’s foreclosure, on May 13, 2025 Defendants wrote a letter to the Mezas which explained the alleged similarities between the two cases, described the information being requested from the Mezas, and requested they contact Defendants. (Armstrong Decl., ¶ 81; Ex. 39.) The letter to the Mezas

stated that a “lawyer named Donald Iwuchukwu appears to have defrauded Patricia Canson of approximately \$470,000 back in 2017. Since she died in 2023, he has resurfaced with his buddies, including another lawyer named Metu Ogike, and it now appears that they are trying to steal all the remaining assets in Patricia Canson’s estate.” (Id.) It further stated, “I believe your family suffered something similar with Donald Iwuchukwu, and I could really use your help in adding to the pile of evidence showing that Donald Iwuchukwu cheats his clients and abuses his license to practice law.” (Id.) Defendants believed the Mezas’ testimony would be relevant to show Plaintiff’s motive, opportunity, intent, preparation, plan, and knowledge, and also for reports to law enforcement. (Id.) Defendants would like to pursue testimony from the Mezas, under Evid. Code, §§ 1101 and 1105, and to support reports to law enforcement.

As

for the third and final communication, Defendants emailed Aurin Canson’s former attorney named Loriann Owens. (Armstrong Decl., ¶ 82.) In this May 9, 2025 email, Defendants stated to Owens that they were Smith’s attorney and asked questions about Plaintiff’s claims in an October 14, 2024 letter to Defendants (Ex. 22), wherein he claimed that he paid Aurin the missing surplus foreclosure funds owed to Decedent and that Aurin was the primary beneficiary of the 2017 Trust. (Id., ¶¶ 82-83; Ex. 40.) In this email, Defendants described Plaintiff as a “prolific white-collar criminal,” a prolific conman, and that he has been “running LARGE-scale scams for years, stealing millions of dollars by siphoning off surpluses from foreclosure sales and preparing fraudulent trusts whereby they take control of entire estates and steal all the property and assets.” They further stated that “Donald Iwuchukwu had Patricia Canson sign a trust naming Donald Iwuchukwu as the initial trustee (while she was still alive and well) in charge of all her assets.”

The

Court agrees with the statements were made in connection with litigation under section 425.16(e)(2) as they were communicative acts performed by attorneys as part of their representation of a client.

Do the Claims “Arise from” Protected Activity?

“As our Supreme Court has recognized, ‘the “arising from” requirement is not always easily met.’ [Citation.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action

arose from that activity for the purposes of the anti-SLAPP statute.

[Citation.] Moreover, that a cause of action arguably may have been “triggered” by protected activity does not entail that it is one arising from such.’ [Citation.] ‘A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, “the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.” [Citations.]’[Citation.]

‘[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’ [Citation.] Put another way, courts should first identify ‘the allegedly wrongful and injury-producing conduct that provides the foundation for the claims,’ and then determine whether that conduct itself constitutes protected activity. [Citations.]” (Callanan v. Grizzly Designs, LLC (2022) 81 Cal.App.5th 517, 526 (Callanan) [citing Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062-1063].)

After demonstrating that its conduct constitutes protected activity, a defendant must then demonstrate that its protected conduct supplies one or more elements of a plaintiff’s claim. (Williams v. Doctors Medical Center of Modesto, Inc. (2024) 100 Cal.App.5th 1117, 1135.)

“[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.” (Park v. Board of Trustees of California State University, supra, 2 Cal.5th at 1063.)

Here, Defendants successfully demonstrate that Complaint’s basis for liability against Defendants is protected activity which supplies the elements of all the causes of action to satisfy the first step of the SLAPP analysis. All of the causes of action depend on the alleged false statements as an element. (See Complaint, ¶¶ 36 [1st COA], 40 [2nd COA], 44 [3rd COA], 51 [4th COA], 58 [5th COA], 63 [6th COA], 72 [7th COA], 79 [8th COA], 87 [9th COA].)

Accordingly, all of the claims arise from protected activity. Defendants have met their burden on the first step.

In opposition, Plaintiff argues that communications to third parties are not automatically protected.

As noted above, in construing the term “in connection with” pending or anticipated litigation, case law has consistently afforded broad protection to statements directed to non-parties. (Neville, supra, 160 Cal. App. 4th at 1270 [letter warning customers to avoid doing business with former employee to preclude the risk of being ensnared as material witnesses was protected activity because it directly related to the claims against the party, and was directed to persons who had an interest in the dispute]; (Contemporary Services Corporation v. Staff Pro Inc. (2007) 152 Cal.App.4th 1043, 1055 [e-mail to customers accusing competitor of litigation-related misconduct was protected activity because it constitutes a litigation update, describing the parties' contention and court rulings, and was directed to individuals who had some involvement in litigation]; Healy, supra, 137 Cal.App.4th 1, 5–6 [letter from homeowners' association to nonparty association members stating that it is performing weed abatement at additional cost because homeowner would not allow access was protected speech because letter was to inform members of the association of pending litigation involving the association].)

Here, all of the third parties were Plaintiff's former clients and therefore, had an interest in the litigation as in the examples in the above cited caselaw.

The Court therefore moves to the next step, under which Plaintiffs must present admissible evidence establishing they are likely to prevail on these causes of action.

Second
Prong: Probability of Success

When defendants carry their initial burden to make a prima facie showing that the claims are subject to CCP § 425.16, the burden shifts to the plaintiff to establish a probability that they will prevail at trial on that claim by making a prima facie showing on that claim.¿ (Roberts v. Los Angeles County Bar Assoc.¿(2003) 105 Cal.App.4th 604, 613.)¿ “Put another way, the plaintiffs ‘must

demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.' [Citations.]" (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1477-78).

"Thus, plaintiffs' burden as to the second prong of the anti-SLAPP test is akin to that of a party opposing a motion for summary judgment." (Id.)

While the Court does not weigh the evidence, "the trial court must consider facts so as to make a determination whether [Cross-Complainants] can establish a prima facie probability of prevailing on [their] claims." (Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903, 921.) "If there is a conflict in the evidence (the existence of a disputed material fact), the anti-SLAPP motion should be denied. (Citizens of Humanity, LLC v. Hass (2020) 46 Cal.App.5th 589, 598.)"

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"An anti-SLAPP motion is an evidentiary motion. Once the court reaches the second prong of the analysis, it must rely on admissible evidence, not merely allegations in the complaint or conclusory statements by counsel." (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 213.)

Litigation
Privilege

Civil Code section 47, subdivision (b), provides that a privileged publication or broadcast is one made "[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...of Title 1 of Part 3 of the Code of Civil Procedure..."

The judicial proceeding privilege, also known as the "litigation privilege," applies to communications (1) made in a judicial or quasi-judicial proceeding; (2) by litigants or other participants authorized by law; (3) to achieve the objects of litigation; and (4) that has some connection or logical relation to the action. (Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 681-82.) The privilege "is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards." [Citation.]" (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232,

1241.) “The test is: ‘To be protected by the litigation privilege, a communication must be “in furtherance of the objects of the litigation.” [Citation.] This is “part of the requirement that the communication be connected with, or have some logical relation to, the action, i.e., that it not be extraneous to the action.” [Citation.]’ ” (Id.)

;

Importantly, the litigation privilege is an absolute privilege that applies to all publications, irrespective of their maliciousness, and bars all causes of action except for a claim of malicious prosecution. (Kenne v. Stennis (2014) 230 Cal.App.4th 953, 964-65.) The privilege is so broad it applies to the presentation of potentially false evidence. (Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 969-70.) The Court in Seltzer explained:

“The principal purpose of the Civil Code section 47 litigation privilege ‘ “is to afford litigants and witnesses [citation] the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions. [Citations.]” [Citation.] The privilege promotes effective judicial proceedings by encouraging “ ‘open channels of communication and the presentation of evidence’ ” without the external threat of liability. [Citation.] The litigation privilege “further promotes the effectiveness of judicial proceedings by encouraging attorneys to zealously protect their clients’ interests.” [Citation.] “Finally, in immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result. [Citations.]” [Citation.]’ “Although originally enacted with reference to defamation actions alone [citation], the privilege has been extended to any communication, whether or not it is a publication, and to all torts other than malicious prosecution. [Citations.] Thus, the privilege has been applied to suits for fraud [citations], negligence and negligent misrepresentation [citation], and interference with contract [citation].” [Citation.]’

Here, the prosecution of the underlying actions is communication relating to the prosecution of a complaint. “The

privilege applies to communications relative to the defense of an action as well as those relative to its filing and prosecution.” (Cabral v. Martins, (2009) 177 Cal.App.4th 471, 485.)

Plaintiff states that the first two elements are undisputed.

As to the allegations relating to the alleged false statements in connection with prosecuting the underlying actions, as noted above, the statements were made to non-parties who had an interest in the lawsuit; thus, the statements were in connection with the lawsuit and had some logical relation to the lawsuit.

Next, Plaintiff

argues the statements to the third parties do not further the objects of litigation, which is the third requirement for the litigation privilege.

(Dickinson v. Cosby, supra, 17 Cal.App.5th at 681-82.)

The Court disagrees. “[T]o be sufficiently in furtherance of the litigation, the communication must “function intrinsically, and apart from any consideration of the speaker’s intent, to advance a litigant’s case,”

noting examples such as the actual pleadings, a lis pendens, demand letters and communications directed towards settlement, communications between a law firm and persons with potential claims, and investigatory interviews. (Rothman v. Jackson (1996) 49 Cal.App.4th 1134, 1148). A party’s legitimate objectives in the litigation are limited

to the remedies which can be awarded by courts. Thus, the “objects of the litigation” for a plaintiff are to obtain a monetary recovery for damages or other relief. (Id., 1147-1148.) Defendants are representing the plaintiffs in the underlying actions. Thus, making the statements to the former clients in order to obtain evidence furthers the objects of litigation, in that it helps Defendants gather evidence in order to obtain a monetary recovery.

Thus, the Court finds that the litigation privilege applies.

“A plaintiff

cannot establish a probability of prevailing if the litigation privilege precludes the defendant’s liability on the claim.” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 888.)

Thus, Defendants’

anti-SLAPP motion is GRANTED.

Attorney

Fees

Defendants seek attorneys' fees against
Plaintiffs pursuant to CCP section 425.16(c).

Code of Civil Procedure section 425.16,
subdivision (c)(1) provides that a prevailing defendant on a special motion to
strike shall be entitled to recover attorney's fees and costs. (Code Civ.
Proc., § 425.16, subd. (c)(1).)

Defendants
are entitled to attorney fees and costs. "[A] defendant who prevails on an anti-SLAPP motion has three
avenues by which to seek prejudgment attorney's fees relating to the filing of
the anti-SLAPP motion: (1) in the anti-SLAPP motion itself; (2) by a
subsequent noticed motion; or (3) as part of a memorandum of costs." (Briggs
v. Elliott (2023) 92 Cal.App.5th 683, 692.) Thus,
Defendants may seek attorney fees and costs by a subsequent noticed motion if
they wish.

CONCLUSION:

Accordingly, Defendants'
Anti-SLAPP motion is GRANTED.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: July 30, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by
contacting the courtroom via email at by no later than 4:00 p.m. the day before the
hearing. All interested parties must be copied on the email. It
should be noted that if you submit on a tentative ruling the court

will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.